

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1169

Introduced by Wordekemper, 15.

Read first time January 21, 2026

Committee:

1 A BILL FOR AN ACT relating to crimes and offenses; to amend section
2 84-941.01, Reissue Revised Statutes of Nebraska, sections 28-115,
3 28-929, 28-929.01, 28-929.02, 28-930, 28-931, 28-934, and 28-1351,
4 Revised Statutes Cumulative Supplement, 2024, and sections 28-101,
5 28-1354, and 29-2221, Revised Statutes Supplement, 2025; to prohibit
6 assault on a court operations officer; to change and eliminate
7 provisions and penalties relating to offenses involving assault on
8 an officer, emergency responder, certain employees, or a health care
9 professional; to define and redefine terms; to harmonize provisions;
10 to repeal the original sections; and to outright repeal section
11 28-931.01, Revised Statutes Cumulative Supplement, 2024.
12 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 28-101, Revised Statutes Supplement, 2025, is
2 amended to read:

3 28-101 Sections 28-101 to 28-1357, 28-1601 to 28-1603, and 28-1701
4 and sections 3 to 7 of this act shall be known and may be cited as the
5 Nebraska Criminal Code.

6 **Sec. 2.** Section 28-115, Revised Statutes Cumulative Supplement,
7 2024, is amended to read:

8 28-115 (1) Except as provided in subsection (2) of this section, any
9 person who commits any of the following criminal offenses against a
10 pregnant woman shall be punished by the imposition of the next higher
11 penalty classification than the penalty classification prescribed for the
12 criminal offense:

- 13 (a) Assault in the first degree, section 28-308;
- 14 (b) Assault in the second degree, section 28-309;
- 15 (c) Assault in the third degree, section 28-310;
- 16 (d) Assault by strangulation or suffocation, section 28-310.01;
- 17 (e) Sexual assault in the first degree, section 28-319;
- 18 (f) Sexual assault in the second or third degree, section 28-320;
- 19 (g) Sexual assault of a child in the first degree, section
20 28-319.01;
- 21 (h) Sexual assault of a child in the second or third degree, section
22 28-320.01;
- 23 (i) Sexual abuse of an inmate or parolee in the first degree,
24 section 28-322.02;
- 25 (j) Sexual abuse of an inmate or parolee in the second degree,
26 section 28-322.03;
- 27 (k) Sexual abuse of a protected individual in the first or second
28 degree, section 28-322.04;
- 29 (l) Sexual abuse of a detainee under section 28-322.05;
- 30 (m) Domestic assault in the first, second, or third degree, section
31 28-323;

1 (n) Assault on a public safety officer or health care professional
2 in the first degree, section 4 of this act; an officer, an emergency
3 responder, a state correctional employee, a Department of Health and
4 Human Services employee, or a health care professional in the first
5 degree, section 28-929;

6 (o) Assault on a public safety officer or health care professional
7 in the second degree, section 5 of this act; an officer, an emergency
8 responder, a state correctional employee, a Department of Health and
9 Human Services employee, or a health care professional in the second
10 degree, section 28-930;

11 (p) Assault on a public safety officer or health care professional
12 in the third degree, section 6 of this act; an officer, an emergency
13 responder, a state correctional employee, a Department of Health and
14 Human Services employee, or a health care professional in the third
15 degree, section 28-931;

16 ~~(q) Assault on an officer, an emergency responder, a state~~
17 ~~correctional employee, a Department of Health and Human Services~~
18 ~~employee, or a health care professional using a motor vehicle, section~~
19 ~~28-931.01;~~

20 ~~(q)~~ ~~(r)~~ Assault by a confined person, section 28-932;

21 ~~(r)~~ ~~(s)~~ Confined person committing offenses against another person,
22 section 28-933; and

23 ~~(s)~~ ~~(t)~~ Proximately causing serious bodily injury while operating a
24 motor vehicle, section 60-6,198.

25 (2) The enhancement in subsection (1) of this section does not apply
26 to any criminal offense listed in subsection (1) of this section that is
27 already punishable as a Class I, IA, or IB felony. If any criminal
28 offense listed in subsection (1) of this section is punishable as a Class
29 I misdemeanor, the penalty under this section is a Class IIIA felony.

30 (3) The prosecution shall allege and prove beyond a reasonable doubt
31 that the victim was pregnant at the time of the offense.

1 **Sec. 3.** Section 28-929.01, Revised Statutes Cumulative Supplement,
2 2024, is amended to read:

3 ~~28-929.01~~ For purposes of sections 3 to 7 of this act ~~28-929,~~
4 ~~28-929.02, 28-930, 28-931, and 28-931.01:~~

5 (1) Court operations officer means any non-sworn person employed by
6 a county, court, or judicial district whose primary responsibility
7 includes physical interaction with the public to:

8 (a) Provide security screening at entrances to courthouses, judicial
9 facilities, or other buildings housing judicial operations;

10 (b) Serve civil process, writs, orders, or protection orders on
11 behalf of a court; or

12 (c) Maintain security and safety within courthouses, judicial
13 facilities, or during judicial proceedings;

14 (2) (1) Emergency care provider means (a) an emergency medical
15 responder; (b) an emergency medical technician; (c) an advanced emergency
16 medical technician; (d) a community paramedic; (e) a critical care
17 paramedic; or (f) a paramedic, as those persons are licensed and
18 classified under the Emergency Medical Services Practice Act;

19 (3) (2) Health care professional means a physician or other health
20 care practitioner who is licensed, certified, or registered to perform
21 specified health services consistent with state law who practices at a
22 hospital or a health clinic;

23 (4) (3) Health clinic has the definition found in section 71-416;
24 and

25 (5) (4) Hospital has the definition found in section 71-419; and -

26 (6) Public safety officer means:

27 (a) A peace officer;

28 (b) A probation officer;

29 (c) A court operations officer;

30 (d) A firefighter;

31 (e) An emergency care provider;

- 1 (f) An employee of the Department of Correctional Services; or
2 (g) An employee of the Department of Health and Human Services if
3 the person committing the offense is committed as a dangerous sex
4 offender under the Sex Offender Commitment Act.

5 **Sec. 4.** Section 28-929, Revised Statutes Cumulative Supplement,
6 2024, is amended to read:

7 ~~28-929 (1) A person commits the offense of assault on an officer, an~~
8 ~~emergency responder, a state correctional employee, a Department of~~
9 ~~Health and Human Services employee, or a public safety officer or health~~
10 ~~care professional in the first degree if such person intentionally or~~
11 ~~knowingly causes serious bodily injury to a:~~

12 (a) Public safety officer while such officer is engaged in the
13 performance of the officer's official duties; or

14 (b) Health care professional while such professional is on duty at a
15 hospital or health clinic.

16 ~~(a) He or she intentionally or knowingly causes serious bodily~~
17 ~~injury:~~

18 ~~(i) To a peace officer, a probation officer, a firefighter, an~~
19 ~~emergency care provider, or an employee of the Department of Correctional~~
20 ~~Services;~~

21 ~~(ii) To an employee of the Department of Health and Human Services~~
22 ~~if the person committing the offense is committed as a dangerous sex~~
23 ~~offender under the Sex Offender Commitment Act; or~~

24 ~~(iii) To a health care professional; and~~

25 ~~(b) The offense is committed while such officer, firefighter,~~
26 ~~emergency care provider, or employee is engaged in the performance of his~~
27 ~~or her official duties or while the health care professional is on duty~~
28 ~~at a hospital or a health clinic.~~

29 (2) A violation of this section is Assault on an officer, an
30 emergency responder, a state correctional employee, a Department of
31 Health and Human Services employee, or a health care professional in the

1 ~~first degree shall be a Class ID felony.~~

2 **Sec. 5.** Section 28-930, Revised Statutes Cumulative Supplement,
3 2024, is amended to read:

4 ~~28-930 (1) A person commits the offense of assault on an officer, an~~
5 ~~emergency responder, a state correctional employee, a Department of~~
6 ~~Health and Human Services employee, or a public safety officer or health~~
7 ~~care professional in the second degree if such person:~~

8 ~~(a) Intentionally, knowingly, or recklessly causes bodily injury to~~
9 ~~a public safety officer or health care professional with a dangerous~~
10 ~~instrument; and~~

11 ~~(b) Such offense is committed while such:~~

12 ~~(i) Public safety officer is engaged in the performance of the~~
13 ~~officer's official duties; or~~

14 ~~(ii) Health care professional is on duty at a hospital or health~~
15 ~~clinic.~~

16 ~~(a) He or she:~~

17 ~~(i) Intentionally or knowingly causes bodily injury with a dangerous~~
18 ~~instrument;~~

19 ~~(A) To a peace officer, a probation officer, a firefighter, an~~
20 ~~emergency care provider, or an employee of the Department of Correctional~~
21 ~~Services;~~

22 ~~(B) To an employee of the Department of Health and Human Services if~~
23 ~~the person committing the offense is committed as a dangerous sex~~
24 ~~offender under the Sex Offender Commitment Act; or~~

25 ~~(C) To a health care professional; or~~

26 ~~(ii) Recklessly causes bodily injury with a dangerous instrument:~~

27 ~~(A) To a peace officer, a probation officer, a firefighter, an~~
28 ~~emergency care provider, or an employee of the Department of Correctional~~
29 ~~Services;~~

30 ~~(B) To an employee of the Department of Health and Human Services if~~
31 ~~the person committing the offense is committed as a dangerous sex~~

1 ~~offender under the Sex Offender Commitment Act; or~~

2 ~~(C) To a health care professional; and~~

3 ~~(b) The offense is committed while such officer, firefighter,~~
4 ~~emergency care provider, or employee is engaged in the performance of his~~
5 ~~or her official duties or while the health care professional is on duty~~
6 ~~at a hospital or a health clinic.~~

7 ~~(2) A violation of this section is Assault on an officer, an~~
8 ~~emergency responder, a state correctional employee, a Department of~~
9 ~~Health and Human Services employee, or a health care professional in the~~
10 ~~second degree shall be a Class II felony.~~

11 **Sec. 6.** Section 28-931, Revised Statutes Cumulative Supplement,
12 2024, is amended to read:

13 ~~28-931~~ (1) A person commits the offense of assault on ~~an officer, an~~
14 ~~emergency responder, a state correctional employee, a Department of~~
15 ~~Health and Human Services employee, or a public safety officer or health~~
16 ~~care professional in the third degree if such person intentionally,~~
17 ~~knowingly, or recklessly causes bodily injury to a:~~

18 ~~(a) Public safety officer while such officer is engaged in the~~
19 ~~performance of the officer's official duties; or~~

20 ~~(b) Health care professional while such professional is on duty at a~~
21 ~~hospital or health clinic.~~

22 ~~(a) He or she intentionally, knowingly, or recklessly causes bodily~~
23 ~~injury;~~

24 ~~(i) To a peace officer, a probation officer, a firefighter, an~~
25 ~~emergency care provider, or an employee of the Department of Correctional~~
26 ~~Services;~~

27 ~~(ii) To an employee of the Department of Health and Human Services~~
28 ~~if the person committing the offense is committed as a dangerous sex~~
29 ~~offender under the Sex Offender Commitment Act; or~~

30 ~~(iii) To a health care professional; and~~

31 ~~(b) The offense is committed while such officer, firefighter,~~

1 ~~emergency care provider, or employee is engaged in the performance of his~~
2 ~~or her official duties or while the health care professional is on duty~~
3 ~~at a hospital or a health clinic.~~

4 (2) ~~A violation of this section is Assault on an officer, an~~
5 ~~emergency responder, a state correctional employee, a Department of~~
6 ~~Health and Human Services employee, or a health care professional in the~~
7 ~~third degree shall be a Class IIIA felony.~~

8 **Sec. 7.** Section 28-934, Revised Statutes Cumulative Supplement,
9 2024, is amended to read:

10 ~~28-934 (1) A person commits an offense if such person:~~

11 ~~(a) Knowingly or intentionally strikes a public safety officer or~~
12 ~~health care professional with a bodily fluid; and~~

13 ~~(b) Such offense is committed while such:~~

14 ~~(i) Public safety officer is engaged in the performance of the~~
15 ~~officer's official duties; or~~

16 ~~(ii) Health care professional is on duty at a hospital or health~~
17 ~~clinic.~~

18 ~~(1) Any person who knowingly and intentionally strikes any public~~
19 ~~safety officer with any bodily fluid is guilty of assault with a bodily~~
20 ~~fluid against a public safety officer.~~

21 (2) Except as provided in subsection (3) of this section, a
22 violation of this section ~~assault with a bodily fluid against a public~~
23 ~~safety officer~~ is a Class I misdemeanor.

24 (3) A violation of this section ~~Assault with a bodily fluid against~~
25 ~~a public safety officer~~ is a Class IIIA felony if the person committing
26 the offense strikes with a bodily fluid the eyes, mouth, or skin of a
27 public safety officer or health care professional and knew the source of
28 the bodily fluid was infected with the human immunodeficiency virus,
29 hepatitis B, or hepatitis C at the time the offense was committed.

30 (4) Upon a showing of probable cause by affidavit to a judge of this
31 state that an offense under ~~as defined in subsection (1) of this section~~

1 has been committed and that identifies the probable source of the bodily
2 fluid or bodily fluids used to commit the offense, the judge shall grant
3 an order or issue a search warrant authorizing the collection of any
4 evidence, including any bodily fluid or medical records or the
5 performance of any medical or scientific testing or analysis, that may
6 assist with the determination of whether or not the person committing the
7 offense or the person from whom the person committing the offense
8 obtained the bodily fluid or bodily fluids is infected with the human
9 immunodeficiency virus, hepatitis B, or hepatitis C.

10 (5) As used in this section:

11 (a) Bodily fluid means any naturally produced secretion or waste
12 product generated by the human body and shall include, but not be limited
13 to, any quantity of human blood, urine, saliva, mucus, vomitus, seminal
14 fluid, or feces; and

15 (b) Public safety officer has the same meaning as in section 3 of
16 this act, but as used in this section, also includes an employee of a:
17 ~~includes any of the following persons who are engaged in the performance~~
18 ~~of their official duties at the time of the offense: A peace officer; a~~
19 ~~probation officer; a firefighter; an emergency care provider as defined~~
20 ~~in section 28-929.01; a health care professional as defined in section~~
21 ~~28-929.01; an employee of a county,~~

22 ~~(i) County, city, or village jail; an employee of the Department of~~
23 ~~Correctional Services; an employee of the secure~~

24 ~~(ii) Secure youth confinement facility operated by the Department of~~
25 ~~Correctional Services, if the person committing the offense is committed~~
26 ~~to such facility; or~~

27 ~~(iii) Youth rehabilitation and treatment center. an employee of a~~
28 ~~youth rehabilitation and treatment center; or an employee of the~~
29 ~~Department of Health and Human Services if the person committing the~~
30 ~~offense is committed as a dangerous sex offender under the Sex Offender~~
31 ~~Commitment Act.~~

1 **Sec. 8.** Section 28-929.02, Revised Statutes Cumulative Supplement,
2 2024, is amended to read:

3 ~~28-929.02~~ Every hospital and health clinic shall display at all
4 times in a prominent place a printed sign with a minimum height of twenty
5 inches and a minimum width of fourteen inches, with each letter to be a
6 minimum of one-fourth inch in height, which shall read as follows:

7 WARNING: ASSAULTING A HEALTH CARE PROFESSIONAL WHO IS ENGAGED IN THE
8 PERFORMANCE OF HIS OR HER OFFICIAL DUTIES, INCLUDING STRIKING A HEALTH
9 CARE PROFESSIONAL WITH ANY BODILY FLUID, IS A SERIOUS CRIME WHICH MAY BE
10 PUNISHABLE AS A FELONY.

11 **Sec. 9.** Section 28-1351, Revised Statutes Cumulative Supplement,
12 2024, is amended to read:

13 28-1351 (1) A person commits the offense of unlawful membership
14 recruitment into an organization or association when he or she knowingly
15 and intentionally coerces, intimidates, threatens, or inflicts bodily
16 harm upon another person in order to entice that other person to join or
17 prevent that other person from leaving any organization, group,
18 enterprise, or association whose members, individually or collectively,
19 engage in or have engaged in any of the following criminal acts for the
20 benefit of, at the direction of, or on behalf of the organization, group,
21 enterprise, or association or any of its members:

22 (a) Robbery under section 28-324;

23 (b) Arson in the first, second, or third degree under section
24 28-502, 28-503, or 28-504, respectively;

25 (c) Burglary under section 28-507;

26 (d) Murder in the first degree, murder in the second degree, or
27 manslaughter under section 28-303, 28-304, or 28-305, respectively;

28 (e) Violations of the Uniform Controlled Substances Act that involve
29 possession with intent to deliver, distribution, delivery, or manufacture
30 of a controlled substance;

31 (f) Unlawful use, possession, or discharge of a firearm or other

1 deadly weapon under sections 28-1201 to 28-1212.04;

2 (g) Assault in the first degree or assault in the second degree
3 under section 28-308 or 28-309, respectively;

4 (h) Assault on ~~an officer, an emergency responder, a state~~
5 ~~correctional employee, a Department of Health and Human Services~~
6 ~~employee, or a public safety officer or health care professional in the~~
7 ~~first, second, or third degree under section 4, 5, or 6 of this act~~
8 ~~28-929, 28-930, or 28-931, respectively , or assault on an officer, an~~
9 ~~emergency responder, a state correctional employee, a Department of~~
10 ~~Health and Human Services employee, or a health care professional using a~~
11 ~~motor vehicle under section 28-931.01;~~

12 (i) Theft by unlawful taking or disposition under section 28-511;

13 (j) Theft by receiving stolen property under section 28-517;

14 (k) Theft by deception under section 28-512;

15 (l) Theft by extortion under section 28-513;

16 (m) Kidnapping under section 28-313;

17 (n) Any forgery offense under sections 28-602 to 28-605;

18 (o) Criminal impersonation under section 28-638;

19 (p) Tampering with a publicly exhibited contest under section
20 28-614;

21 (q) Unauthorized use of a financial transaction device or criminal
22 possession of a financial transaction device under section 28-620 or
23 28-621, respectively;

24 (r) Pandering under section 28-802;

25 (s) Bribery, bribery of a witness, or bribery of a juror under
26 section 28-917, 28-918, or 28-920, respectively;

27 (t) Tampering with a witness or an informant or jury tampering under
28 section 28-919;

29 (u) Unauthorized application of graffiti under section 28-524;

30 (v) Dogfighting, cockfighting, bearbaiting, or pitting an animal
31 against another under section 28-1005; or

1 (w) Promoting gambling in the first degree under section 28-1102.

2 (2) Unlawful membership recruitment into an organization or
3 association is a Class IV felony.

4 **Sec. 10.** Section 28-1354, Revised Statutes Supplement, 2025, is
5 amended to read:

6 28-1354 For purposes of the Public Protection Act:

7 (1) Enterprise means any individual, sole proprietorship,
8 partnership, corporation, trust, association, or any legal entity, union,
9 or group of individuals associated in fact although not a legal entity,
10 and shall include illicit as well as licit enterprises as well as other
11 entities;

12 (2) Pattern of racketeering activity means a cumulative loss for one
13 or more victims or gains for the enterprise of not less than one thousand
14 five hundred dollars resulting from at least two acts of racketeering
15 activity, one of which occurred after August 30, 2009, and the last of
16 which occurred within ten years, excluding any period of imprisonment,
17 after the commission of a prior act of racketeering activity;

18 (3) Until January 1, 2017, person means any individual or entity, as
19 defined in section 21-2014, holding or capable of holding a legal,
20 equitable, or beneficial interest in property. Beginning January 1, 2017,
21 person means any individual or entity, as defined in section 21-214,
22 holding or capable of holding a legal, equitable, or beneficial interest
23 in property;

24 (4) Prosecutor includes the Attorney General of the State of
25 Nebraska, the deputy attorney general, assistant attorneys general, a
26 county attorney, a deputy county attorney, or any person so designated by
27 the Attorney General, a county attorney, or a court of the state to carry
28 out the powers conferred by the act;

29 (5) Racketeering activity includes the commission of, criminal
30 attempt to commit, conspiracy to commit, aiding and abetting in the
31 commission of, aiding in the consummation of, acting as an accessory to

1 the commission of, or the solicitation, coercion, or intimidation of
2 another to commit or aid in the commission of any of the following:

3 (a) Offenses against the person which include: Murder in the first
4 degree under section 28-303; murder in the second degree under section
5 28-304; manslaughter under section 28-305; assault in the first degree
6 under section 28-308; assault in the second degree under section 28-309;
7 assault in the third degree under section 28-310; terroristic threats
8 under section 28-311.01; kidnapping under section 28-313; false
9 imprisonment in the first degree under section 28-314; false imprisonment
10 in the second degree under section 28-315; sexual assault in the first
11 degree under section 28-319; and robbery under section 28-324;

12 (b) Offenses relating to controlled substances which include: To
13 unlawfully manufacture, distribute, deliver, dispense, or possess with
14 intent to manufacture, distribute, deliver, or dispense a controlled
15 substance under subsection (1) of section 28-416; possession of marijuana
16 weighing more than one pound under subsection (12) of section 28-416;
17 possession of money used or intended to be used to facilitate a violation
18 of subsection (1) of section 28-416 prohibited under subsection (17) of
19 section 28-416; any violation of section 28-418; to unlawfully
20 manufacture, distribute, deliver, or possess with intent to distribute or
21 deliver an imitation controlled substance under section 28-445;
22 possession of anhydrous ammonia with the intent to manufacture
23 methamphetamine under section 28-451; and possession of ephedrine,
24 pseudoephedrine, or phenylpropanolamine with the intent to manufacture
25 methamphetamine under section 28-452;

26 (c) Offenses against property which include: Arson in the first
27 degree under section 28-502; arson in the second degree under section
28 28-503; arson in the third degree under section 28-504; burglary under
29 section 28-507; theft by unlawful taking or disposition under section
30 28-511; theft by shoplifting under section 28-511.01; theft by deception
31 under section 28-512; theft by extortion under section 28-513; theft of

1 services under section 28-515; theft by receiving stolen property under
2 section 28-517; criminal mischief under section 28-519; and unlawfully
3 depriving or obtaining property or services using a computer under
4 section 28-1344;

5 (d) Offenses involving fraud which include: Burning to defraud an
6 insurer under section 28-505; forgery in the first degree under section
7 28-602; forgery in the second degree under section 28-603; criminal
8 possession of a forged instrument under section 28-604; criminal
9 possession of written instrument forgery devices under section 28-605;
10 criminal impersonation under section 28-638; identity theft under section
11 28-639; identity fraud under section 28-640; false statement or book
12 entry under section 28-612; tampering with a publicly exhibited contest
13 under section 28-614; issuing a false financial statement for purposes of
14 obtaining a financial transaction device under section 28-619;
15 unauthorized use of a financial transaction device under section 28-620;
16 criminal possession of a financial transaction device under section
17 28-621; unlawful circulation of a financial transaction device in the
18 first degree under section 28-622; unlawful circulation of a financial
19 transaction device in the second degree under section 28-623; criminal
20 possession of a blank financial transaction device under section 28-624;
21 criminal sale of a blank financial transaction device under section
22 28-625; criminal possession of a financial transaction forgery device
23 under section 28-626; unlawful manufacture of a financial transaction
24 device under section 28-627; laundering of sales forms under section
25 28-628; unlawful acquisition of sales form processing services under
26 section 28-629; unlawful factoring of a financial transaction device
27 under section 28-630; and fraudulent insurance acts under section 28-631;

28 (e) Offenses involving governmental operations which include: Abuse
29 of public records under section 28-911; perjury or subornation of perjury
30 under section 28-915; bribery under section 28-917; bribery of a witness
31 under section 28-918; tampering with a witness or informant or jury

1 tampering under section 28-919; bribery of a juror under section 28-920;
2 assault on a public safety officer or health care professional in the
3 first, second, or third degree under section 4, 5, or 6 of this act;
4 ~~assault on an officer, an emergency responder, a state correctional~~
5 ~~employee, a Department of Health and Human Services employee, or a health~~
6 ~~care professional in the first degree under section 28-929; assault on an~~
7 ~~officer, an emergency responder, a state correctional employee, a~~
8 ~~Department of Health and Human Services employee, or a health care~~
9 ~~professional in the second degree under section 28-930; assault on an~~
10 ~~officer, an emergency responder, a state correctional employee, a~~
11 ~~Department of Health and Human Services employee, or a health care~~
12 ~~professional in the third degree under section 28-931; and assault on an~~
13 ~~officer, an emergency responder, a state correctional employee, a~~
14 ~~Department of Health and Human Services employee, or a health care~~
15 ~~professional using a motor vehicle under section 28-931.01;~~

16 (f) Offenses involving gambling which include: Promoting gambling in
17 the first degree under section 28-1102; possession of gambling records
18 under section 28-1105; gambling debt collection under section 28-1105.01;
19 and possession of a gambling device under section 28-1107;

20 (g) Offenses relating to firearms, weapons, and explosives which
21 include: Carrying a concealed weapon under section 28-1202;
22 transportation or possession of machine guns, short rifles, or short
23 shotguns under section 28-1203; unlawful possession of a handgun under
24 section 28-1204; unlawful transfer of a firearm to a juvenile under
25 section 28-1204.01; possession of a firearm by a prohibited juvenile
26 offender under section 28-1204.05; using a deadly weapon to commit a
27 felony, possession of a deadly weapon during the commission of a felony,
28 or carrying a firearm or destructive device during the commission of a
29 dangerous misdemeanor under section 28-1205; possession of a deadly
30 weapon by a prohibited person under section 28-1206; possession of a
31 defaced firearm under section 28-1207; defacing a firearm under section

1 28-1208; unlawful discharge of a firearm under section 28-1212.02;
2 possession, receipt, retention, or disposition of a stolen firearm under
3 section 28-1212.03; unlawful possession of explosive materials in the
4 first degree under section 28-1215; unlawful possession of explosive
5 materials in the second degree under section 28-1216; unlawful sale of
6 explosives under section 28-1217; use of explosives without a permit
7 under section 28-1218; obtaining an explosives permit through false
8 representations under section 28-1219; possession of a destructive device
9 under section 28-1220; threatening the use of explosives or placing a
10 false bomb under section 28-1221; using explosives to commit a felony
11 under section 28-1222; using explosives to damage or destroy property
12 under section 28-1223; and using explosives to kill or injure any person
13 under section 28-1224;

14 (h) Any violation of the Securities Act of Nebraska pursuant to
15 section 8-1117;

16 (i) Any violation of the Nebraska Revenue Act of 1967 pursuant to
17 section 77-2713;

18 (j) Offenses relating to public health and morals which include:
19 Prostitution under section 28-801; pandering under section 28-802;
20 keeping a place of prostitution under section 28-804; labor trafficking,
21 sex trafficking, labor trafficking of a minor, or sex trafficking of a
22 minor under section 28-831; a violation of section 28-1005; and any act
23 relating to the visual depiction of sexually explicit conduct prohibited
24 in the Child Sexual Abuse Material Prevention Act; and

25 (k) A violation of the Computer Crimes Act;

26 (6) State means the State of Nebraska or any political subdivision
27 or any department, agency, or instrumentality thereof; and

28 (7) Unlawful debt means a debt of at least one thousand five hundred
29 dollars;

30 (a) Incurred or contracted in gambling activity which was in
31 violation of federal law or the law of the state or which is

1 unenforceable under state or federal law in whole or in part as to
2 principal or interest because of the laws relating to usury; or

3 (b) Which was incurred in connection with the business of gambling
4 in violation of federal law or the law of the state or the business of
5 lending money or a thing of value at a rate usurious under state law if
6 the usurious rate is at least twice the enforceable rate.

7 **Sec. 11.** Section 29-2221, Revised Statutes Supplement, 2025, is
8 amended to read:

9 29-2221 (1) Whoever has been twice convicted of a crime, sentenced,
10 and committed to prison, in this or any other state or by the United
11 States or once in this state and once at least in any other state or by
12 the United States, for terms of not less than one year each shall, upon
13 conviction of a felony committed in this state, be deemed to be a
14 habitual criminal and shall be punished by imprisonment in a Department
15 of Correctional Services adult correctional facility for a mandatory
16 minimum term of ten years and a maximum term of not more than sixty
17 years, except that:

18 (a) If the felony committed is in violation of section 28-303,
19 28-304, 28-308, 28-313, 28-319, 28-319.01, 28-502, ~~28-929~~, or 28-1222 or
20 section 4 of this act, and at least one of the habitual criminal's prior
21 felony convictions was for a violation of one of the sections listed in
22 this subdivision or of a similar statute in another state or of the
23 United States, the mandatory minimum term shall be twenty-five years and
24 the maximum term not more than sixty years;

25 (b) If the felony committed is in violation of subsection (3) of
26 section 28-306 and at least one of the prior convictions is in violation
27 of subsection (3) of section 28-306 and the other is in violation of one
28 of the sections set forth in subdivision (a) of this subsection or if the
29 felony committed is in violation of one of the sections set forth in
30 subdivision (a) of this subsection and both of the prior convictions are
31 in violation of subsection (3) of section 28-306, the mandatory minimum

1 term shall be twenty-five years and the maximum term not more than sixty
2 years;

3 (c) If the felony committed is in violation of subsection (3) of
4 section 28-416 or in violation of sections 28-509 to 28-518 and all of
5 the habitual criminal's prior felony convictions are also violations of
6 such subsection or sections or of a similar statute in another state or
7 of the United States, the mandatory minimum term shall be three years and
8 the maximum term not more than twenty years; and

9 (d) If a greater punishment is otherwise provided by statute, the
10 law creating the greater punishment shall govern.

11 (2) When punishment of an accused as a habitual criminal is sought,
12 the facts with reference thereto shall be charged in the indictment or
13 information which contains the charge of the felony upon which the
14 accused is prosecuted, but the fact that the accused is charged with
15 being a habitual criminal shall not be an issue upon the trial of the
16 felony charge and shall not in any manner be disclosed to the jury. If
17 the accused is convicted of a felony, before sentence is imposed a
18 hearing shall be had before the court alone as to whether such person has
19 been previously convicted of prior felonies. The court shall fix a time
20 for the hearing and notice thereof shall be given to the accused at least
21 three days prior thereto. At the hearing, if the court finds from the
22 evidence submitted that the accused has been convicted two or more times
23 of felonies and sentences imposed therefor by the courts of this or any
24 other state or by the United States, the court shall sentence such person
25 so convicted as a habitual criminal.

26 (3) If the person so convicted shows to the satisfaction of the
27 court before which the conviction was had that he or she was released
28 from imprisonment upon either of such sentences upon a pardon granted for
29 the reason that he or she was innocent, such conviction and sentence
30 shall not be considered as such under this section and section 29-2222.

31 **Sec. 12.** Section 84-941.01, Reissue Revised Statutes of Nebraska, is

1 amended to read:

2 84-941.01 Potentially disqualifying conviction includes a conviction
3 for:

4 (1) Criminal attempt as provided in section 28-201, conspiracy as
5 provided in section 28-202, or aiding and abetting as provided in section
6 28-206, to commit an offense listed in this section;

7 (2) Murder as provided in sections 28-303 or 28-304;

8 (3) Manslaughter as provided in section 28-305;

9 (4) Motor vehicle homicide as provided in section 28-306;

10 (5) Assault in the first or second degree as provided in sections
11 28-308 and 28-309;

12 (6) Terroristic threats as provided in section 28-311.01;

13 (7) Stalking as provided in section 28-311.03;

14 (8) Kidnapping as provided in section 28-313;

15 (9) False imprisonment as provided in sections 28-314 and 28-315;

16 (10) A sexual act subject to criminal penalties as provided in
17 sections 28-317 to 28-322.05;

18 (11) Domestic assault as provided in section 28-323;

19 (12) Robbery as provided in section 28-324;

20 (13) Arson as provided in sections 28-502, 28-503, and 28-504;

21 (14) Fraud subject to criminal penalties as provided in sections
22 28-505, 28-631, 28-638, 28-639, 28-640, and 28-935;

23 (15) Theft as provided in sections 28-511, 28-512, 28-513, and
24 28-515;

25 (16) Forgery as provided in sections 28-602 and 28-603;

26 (17) Incest as provided in section 28-703;

27 (18) Child abuse as provided in section 28-707;

28 (19) Human trafficking, labor trafficking, sex trafficking, labor
29 trafficking of a minor, or sex trafficking of a minor as provided in
30 section 28-831;

31 (20) False reporting as provided in section 28-907;

1 (21) Perjury as provided in section 28-915;

2 (22) Assault on a public safety officer or health care professional
3 in the first degree, section 4 of this act; an officer, an emergency
4 responder, certain employees, or a health care professional in the first
5 degree as provided in section 28-929;

6 (23) Assault on a public safety officer or health care professional
7 in the second degree, section 5 of this act; an officer, an emergency
8 responder, certain employees, or a health care professional in the second
9 degree as provided in section 28-930;

10 (24) Assault on a public safety officer or health care professional
11 in the third degree, section 6 of this act; an officer, an emergency
12 responder, certain employees, or a health care professional in the third
13 degree as provided in section 28-931;

14 ~~(25) Assault on an officer, an emergency responder, certain~~
15 ~~employees, or a health care professional using a motor vehicle as~~
16 ~~provided in section 28-931.01;~~

17 (25) ~~(26)~~ An offense that has as an element the threat to inflict
18 serious bodily injury as defined in section 28-109 or death on another
19 person, the intentional infliction of serious bodily injury as defined in
20 section 28-109 on another person, or intentionally causing the death of
21 another person;

22 (26) ~~(27)~~ An offense for which registration is required under the
23 Sex Offender Registration Act; or

24 (27) ~~(28)~~ Any offense under the laws of another jurisdiction that is
25 substantially equivalent to any of the offenses listed in this section.

26 **Sec. 13.** Original section 84-941.01, Reissue Revised Statutes of
27 Nebraska, sections 28-115, 28-929, 28-929.01, 28-929.02, 28-930, 28-931,
28 28-934, and 28-1351, Revised Statutes Cumulative Supplement, 2024, and
29 sections 28-101, 28-1354, and 29-2221, Revised Statutes Supplement, 2025,
30 are repealed.

31 **Sec. 14.** The following section is outright repealed: Section

1 28-931.01, Revised Statutes Cumulative Supplement, 2024.